
Appeal Decision

Site visit made on 18 August 2026

by J Heppell BA (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

Appeal Ref: 6010883

28 Central Parade, Croydon CR0 0JB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission under section 73 of the Town and Country Planning Act 1990 (as amended) for the development of land without complying with conditions subject to which a previous planning permission was granted.
 - The appeal is made by JM Restaurants Ltd against the decision of the Council of the London Borough of Croydon.
 - The application Ref 26/00964/CONR dated 31 March 2026 was refused by notice dated 29 May 2026.
 - The application sought planning permission for use of basement, ground and upper level mezzanine for purposes within Class A3 (restaurant), erection of two storey rear extension with external fire escape staircase/hand railings without complying with a condition attached to planning permission Ref 94/2051/P dated 24 August 1995.
 - The condition in dispute is No 1 which states that: *The premises shall not be used except between 0900 hours and 2330 hours.*
 - The reason given for the condition is: *To protect the amenities of adjoining occupiers.*
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Decision

1. The appeal is dismissed.

Applications for costs

2. An application for costs was made by JM Restaurants Ltd against the decision of the Council of the London Borough of Croydon. This is the subject of a separate decision.

Preliminary Matters

3. Following the submission of the appeal, the revised National Planning Policy Framework (Framework) was published on 17 August 2026. The main parties were afforded the opportunity to comment on the implications of the new Framework for the proposal.

Main Issue

4. The planning permission for a restaurant granted under Ref 94/2051/P was subject to a number of conditions, including No 1 which limited the use of the premises to the hours of 09:00 to 23.00. The reason for the condition was to protect the amenities of adjoining occupiers.
5. Under Ref 26/00964/CONR, the appellant sought to vary Condition 1 to extend the opening hours of the premises to allow it to remain open until midnight on Sunday to Thursday and 02:00 on Friday and Saturday. The Council refused the application, fearing that it would be detrimental to the amenities of the occupiers of

nearby properties by reason of noise and disturbance at a time when neighbours can reasonably expect not to be disturbed. The Council cited conflict with Policy D3 of the London Plan March 2021 (LP) and policies SP4.1, SP4.2 and DM10.6 of the Croydon Local Plan 2018 (CLP), and with the Framework.

6. The main issue is the effect on the living conditions of existing residents of extended opening hours, having particular regard to noise and disturbance.

Reasons

7. The site is located within the main retail frontage of New Addington's district centre. The primary shopping area comprises an extended parade of shops with duplex flats above facing a central car park, opposite which there is a cluster of community facilities. The majority of units are in retail use, though there are some restaurants and hot food takeaways, including the site itself which operates as a KFC takeaway.
8. On my site visit on a weekday, I observed New Addington to be a busy district centre with considerable pedestrian and vehicular activity. The daytime environment for residents living above the units is therefore noisier than for occupiers of houses located further away from the parade. However, the limited presence of restaurants and takeaways indicated to me that there is likely to be reduced activity in the evening, once local shops have closed and their customers have gone home.
9. The premises is currently required to close by 11.30pm. The Domino's takeaway at No 40 is required by the terms of its planning permission to close at 11.30pm on weekdays, at midnight on Saturdays and at 10pm on Sundays and Bank Holidays¹ (albeit the appellant reports that the advertised opening hours extend closer to midnight on some days). I have not been advised of the opening hours of the takeaway at the adjacent No 27, known as Kuku's, and have taken account of the appellant's contention that as No 27 does not benefit from planning permission for a takeaway, it has not been assessed against the policies of the development plan. Potential enforcement issues however fall outside the scope of this appeal and do not have a bearing on its outcome.
10. The appellant undertook an acoustic assessment based on noise readings taken on a weekday between 11pm and 2am, which provided typical measured background noise levels and ambient sound levels. The assessment confirmed that the extract system at the premises required attenuation in the form of a silencer, which the appellant indicated a willingness to install. The assessment found that the noise of delivery vehicles arriving in the nearest parking bay would be lower than the typical ambient noise environment and therefore have no effect on residents. I have no reason to doubt the findings of the acoustic assessment.
11. However, it is evident from the Council's submissions that their concerns related to the comings and goings of customers and to the use of delivery bikes, neither of which is explicitly addressed in the acoustic assessment. Given that residents live directly above the units, there is a risk of customer conversations and the noise generated by delivery bikes (as opposed to cars), causing disturbance late at night and early in the morning. In the absence of predicted noise outputs from these sources in relation to background levels, there is insufficient evidence to show that

¹ LPA reference 16/06335/FUL

the living conditions of nearby occupiers would be adequately protected from these noise sources.

12. Interested parties, some of whom reside above the shops, have alluded to existing problems of litter, antisocial behaviour, noise from staff taking breaks behind the shops, and the behaviour of delivery bike riders. I observed on my site visit that the shared residential staircase next to Kuku's suffers from a litter problem, though there is no indication that this is associated with KFC. The appellant pointed out that it would not be in the interests of delivery riders whose income depends on KFC's business to loiter unnecessarily, and drew my attention to KFC's litter policy, which could I consider be made the subject of a condition were I minded to allow the appeal.
13. Whilst there is no record of recent crimes or noise complaints associated with the site, or indeed No 27, and no suggestion that antisocial behaviour is linked to either premises, the police advised that instances of antisocial behaviour are not always reported. I therefore attach weight to the concerns raised by interested parties, which underscore the risk of extended opening hours exacerbating the problems currently experienced by residents.
14. I have placed limited weight on the Council's previous refusal to extend the opening hours of the premises², a decision which dates back a number of years, since when both the local context and the development plan have changed. I have had regard to the comments of the Council's Pollution Control Officer who, whilst not querying the conclusions of the acoustic assessment, recommended that the opening hours of the premises be restricted to the hours of nearby takeaways. On the basis that the current permitted opening hours of the takeaways which have been brought to my attention do not allow operation after midnight, noise levels after that time are likely to be lower, underscoring the need to carefully scrutinise the proposal for extended night time opening.
15. The Council's reason for refusal referred to paragraphs 97 and 135 of the Framework, which have been replaced by policies HC5 and P3 respectively of the updated Framework. Policy HC5 provides guidance on hot food takeaways near schools and proposals which would give rise to a concentration of such uses and, as it has not been put to me that either of these outcomes would result from the proposal, there is no conflict with this policy.
16. Policy P3 requires proposals not to give rise to, or contribute to, unacceptable levels of noise for neighbouring residents. It advises that adverse impacts of this nature should be avoided where possible, or else mitigated to an acceptable degree. In light of my findings, the proposal would conflict with the requirements of Policy P3.
17. The relevant development plan policies aim to enhance social cohesion via a design-led approach which protects the amenity of the occupiers of adjoining buildings and prevents or mitigates the impact of noise. The proposal has not sufficiently demonstrated that it would achieve these aims. I therefore conclude that varying the condition to allow extended opening hours would have an unacceptable impact on the living conditions of nearby residents, contrary to Policy D3 of the LP and policies SP4.1, SP4.2 and DM10.6 of the CLP.

² LPA reference 97/01762/P

Conclusion

18. As I have concluded that varying the condition would harm the living conditions of existing residents, the appeal is dismissed.

J Heppell

INSPECTOR